

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1162

Introduced by Ballard, 21.

Read first time January 20, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Public Service Commission; to amend
- 2 section 75-401, Reissue Revised Statutes of Nebraska; to change
- 3 powers and duties of the Public Service Commission relating to
- 4 railroad safety; and to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 75-401, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 75-401 (1) The commission shall exercise jurisdiction over the
4 service, facilities, and equipment of all railroad carriers in this
5 state. This jurisdiction shall extend and apply to the general public, as
6 well as those having business relations with the railroad carrier.
7 Sections 75-401 to 75-430 shall not be construed as giving the commission
8 jurisdiction or control over the relations between any railroad carrier
9 and its employees, or its employees' order, union, or other bargaining
10 agent, either contractual or otherwise, except as provided in sections
11 75-419 to 75-426.

12 (2) The commission may adopt the federal railroad safety standards
13 provided in 49 U.S.C. chapters 201 to 213 and 49 C.F.R. parts 200 to 299,
14 as such federal laws existed on January 1, 2026, for the limited purpose
15 of conducting safety inspections and participating in federal railroad
16 safety programs. The commission may conduct inspections, surveillance,
17 and related activities that are authorized under the Federal Railroad
18 Administration's State Safety Participation Program and may report
19 potential violations of federal railroad safety regulations to the
20 Federal Railroad Administration for appropriate federal enforcement.
21 ~~shall enforce the standards of railroad safety set forth in 49 C.F.R.~~
22 ~~parts 213, 215, 223, 229, 231, and 232.~~

23 **Sec. 2.** Original section 75-401, Reissue Revised Statutes of
24 Nebraska, is repealed.